

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, NOVEMBER 14, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Pacific Livestock, Inc. vs. Canon Station LLC, et al.
Case No. CU23-00724**

Motion to Expunge Lis Pendens

TENTATIVE RULING

The Court has received the Stipulation by the parties to continue the Motion to Expunge. The hearing is hereby continued to January 9, 2026 at 9:00 a.m. in Department 8.

**Kenneth Anthony Buchanan, Jr vs. Vertus Properties, Inc.
Case No. CU24-03325**

Motion for Preliminary Approval of Class Action and PAGA Settlement

TENTATIVE RULING

Before granting final approval of class settlements, courts grant preliminary approval of the class settlement, grant conditional certification of the class, approve the forms and methods of class notice, and set a final hearing.

In determining whether a class settlement is fair, adequate and reasonable, the court considers relevant factors, including: (1) the strength of plaintiffs' case; (2) the risk, expense, complexity and likely duration of further litigation; (3) the risk of maintaining

class action status through trial; (4) the amount offered in settlement; (5) the extent of discovery completed and the stage of the proceedings; (6) the experience and views of counsel; (7) the presence of a governmental participant; and (8) the reaction of the class members to the proposed settlement. The list of factors is not exclusive and the court is free to engage in a balancing and weighing of factors depending on the circumstances of each case.

Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement and to ensure the absence of fraud, overreaching or collusion between the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned. The court uniquely serves as the gatekeeper to protect the interests of the putative class and PAGA group.

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.

(See *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 244-45.)

Initial hearing on Plaintiff's Motion for Preliminary Approval of class and representative action settlement was heard on October 8, 2025. The court outlined a number of questions related to the proposed class action and PAGA settlement and provided the parties with the opportunity to submit further briefing.

The parties engaged in mediation with retired Judge Carl West. Counsel for the respective parties have not previously negotiated a class action and/or PAGA settlement.

Plaintiff seeks approval and certification of a class action and PAGA settlement representing 254 putative class members in the amount of \$605,000 which will result in a gross benefit of \$2381.89 for each class member and net of \$1302.49 for each before tax. In addition, each of the 180 eligible employees will receive a fraction of a \$7500 PAGA settlement with \$22,500 allocated to the California Labor and Workforce Development Agency. Phoenix Settlement Administrators will be paid \$8250 or an amount not to exceed \$10,000. A \$7500 fee for the representative is requested, reimbursement of costs not to exceed \$25,000 is requested and counsel seeks approval of one-third of the global settlement amount of approximately \$201,667 for attorneys' fees.

The court appreciates counsel's plain and straightforward summary of the settlement terms as set forth at pages 4-5 of the moving papers. The court's earlier questions were directed at the ability to assess the factors to determine whether a class

settlement is fair, adequate and reasonable based upon an understanding as set forth above and ensuring counsel's in-depth knowledge of this case. In this case, the representative is a Maintenance Supervisor who was not employed during all periods covered by the settlement which includes two years prior to his employment. The court has no understanding of any of the other job classifications of the other proposed class members other than their status as hourly, non-exempt employees nor their locations and conditions of employment. Plaintiff's counsel appears to concede that many hourly employees worked autonomously in the field with little day-to-day oversight. The supplemental pleading does not appear to answer the court's earlier questions except to clarify Plaintiffs' position that the issues are alleged to be practices uniformly implemented as to all hourly, non-exempt employees such that there is no benefit or legal requirement for a better understanding of the different job descriptions, locations and local practices or a different class representative.

Plaintiff's counsel is experienced in class action litigation. Plaintiffs indicate the gross settlement amount of \$605,000 is about 97% of the \$626,810 estimate of "risk adjusted recovery" of a best-case scenario of a total of \$2,047,788 in wage and hour claims and \$4,373,250 in PAGA penalties exposure. \$605,000 represents a little over 9% of the total best case recovery scenario, which is on the lower side of a negotiated resolution. However, the moving papers set forth a detailed analysis of each claimed item including unpaid off-the-clock wages, meal break violations, rest break violations, unreimbursed expenses, wage statement penalties and Labor Code section 203 penalties and PAGA liability and the discounts applied by counsel due to risk and other proof factors and potential defense legal arguments.

Plaintiff adequately identifies a class of non-exempt hourly employees who may allege meal and rest break violations, unreimbursed expense, wage statement penalties, Labor Code section 203 penalties and PAGA penalties based upon uniform implementation of the same policies by the employer across the board. The court is satisfied that the settlement representing 97% of a risk adjusted recovery is the result of arms-length braining and without collusion. While the court would have preferred a summary detailing additional information and knowledge by counsel about the nature of the job classifications and locations involved to better assess whether the claim of the representative is typical of the claims of the proposed class, this absence does not render counsel and its expert's assessment void as to claims of policy based decisions being administered across the board resulting in common questions of law or fact that are substantially similar for which the class representative is adequate. Informal discovery appears to have been adequate to allow counsel and its expert to conduct an analysis of the policy -based wage and hour claims.

The notice with any amendments as discussed at the prior hearing will be adequate.

The motion for preliminary class action and PAGA settlement approval is **GRANTED**. To better accommodate administration of the notice and opt out period over a period of time which involves the holidays, and assuming the prior comments are incorporated into changes to the notice as discussed, the court requested additional time be added to

the opt out period. The court confirms the final approval hearing on April 30, 2026. The court will again review and consider the terms of the settlement at the final approval hearing.

MARK CHANCE v. LUSBIN EFRAN RODRIGUEZ and CARLA JO SOLICH
Case No. CU24-08769

SOLICH's Motion for Summary Judgment

TENTATIVE RULING

Defendant CARLA JO SOLICH ("SOLICH") moves for summary judgment against Plaintiff MARK CHANCE's complaint alleging negligence. Plaintiff's complaint alleges that SOLICH is at fault for a motor vehicle collision on I-80 on February 5, 2023 that injured Plaintiff.

Timeliness of Opposition. Opposition to a motion for summary judgment is due twenty days before the hearing; October 10, 2025 in this case. (Code Civ. Proc., § 437c, subd. (b)(2).) Plaintiff filed his opposition on October 13, 2025. Additionally, Plaintiff's opposition documents do not attach evidentiary exhibits mentioned in declarations. In light of the continuance of this motion by the court, the court exercises its discretion to consider the untimely opposition, but does not consider references to inadmissible evidence. (See discussion *infra*.)

Requests for Judicial Notice. Matters subject to judicial notice may support a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (b)(1).) SOLICH requests judicial notice of the court's May 8, 2025 order granting her discovery motions and also of her relevant requests for admissions submitted to Plaintiff. The court takes judicial notice of these records of a court of the state under Evidence Code section 452, subdivision (d). The court additionally takes judicial notice of its own files which do not include relief or a request for relief pursuant to Code of Civil Procedure section 2033.300.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp.* (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid.*) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid.*) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker, supra*, 3 Cal.3d at p. 181.) Additionally, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Negligence. The elements of a negligence claim are duty, breach, and causation of damages. (*Moses v. Roger-McKeeever* (2023) 91 Cal.App.5th 172, 178-179.) Plaintiff is deemed to have admitted that he has no evidence SOLICH was negligent. (SOLICH RJN #1-2 [request #6].) He admitted that SOLICH's vehicle came to a complete stop without striking his vehicle and was only pushed into his vehicle because of Defendant LUSBIN EFRAN RODRIGUEZ's vehicle striking SOLICH's vehicle. (*Ibid.* [requests #2-4].) This suffices to meet SOLICH's burden on summary judgment of negating breach and causation because it establishes that she did not breach a duty of care and she did not cause Plaintiff's damages in that SOLICH fully stopped her vehicle and only contacted Plaintiff's vehicle after being pushed by another. Deemed admissions are not merely procedural items. They are considered conclusively established against the party deemed to have made the admission. (Code Civ. Proc., § 2033.410; see also *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 971; *People v. \$2709 United States Currency* (2014) 2321 Cal.App.4th 1278, 1285-1286.)

Conclusion. SOLICH's motion for summary judgment is granted.

Department 8 is inviting you to a scheduled ZoomGov meeting.

Join ZoomGov Meeting

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